



POLICE DEPARTMENT

May 22, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202208462 (Incident Date: November 28, 2022) regarding Sergeant Rafael Pimentel, Tax No. 951060 (DADS No. 2024-30313)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202208462, pertaining to Sergeant Rafael Pimentel. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against said officer would be detrimental to the Police Department's disciplinary process.

In this case, Sergeant Pimentel engaged in an improper search of an individual and their vehicle. Also, he terminated his body worn camera recording prior to the conclusion of the police activity and did not provide a business card, as required.

Since the substantiated allegations arose out of one continuous event, the Police Commissioner has determined that a penalty consisting of a Schedule "A" Command Discipline is more appropriate. For the same reason, any penalty days imposed, shall run concurrent.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to direct the issuance of a Schedule "A" Command Discipline for the substantiated allegations.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
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ARVA RICE
INTERIM CHAIR

May 28, 2024

The Honorable Edward Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202208462 (Incident Date: November 28, 2022) regarding Sergeant Rafael Pimentel, Tax No. 951060 (DADS No. 2024-30313)

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated May 22, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications against SGT Pimentel and issue a Schedule “A” Command Discipline. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that you reviewed the entirety of this matter and determined that to pursue Charges and Specifications against SGT Pimentel would be detrimental to the Police Department’s disciplinary process. Instead, you intend to dismiss the charges and impose a Schedule A Command Discipline upon him.

While the CCRB acknowledges you are the final arbiter of discipline, it respectfully disagrees with your assessment and requests that the NYPD serve Charges and Specifications upon SGT Pimentel.

Respectfully submitted,

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

May 29, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202208462 (Incident Date: November 28, 2022) regarding Sergeant Rafael Pimentel, Tax No. 951060 (DADS No. 2024-30313)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated May 28, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Sergeant Rafael Pimentel. Nevertheless, he maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Sergeant Pimentel for the reasons expressed in my May 22, 2024 letter.

To accommodate the Statute of Limitations and in accordance with the Police Commissioner's direction, Sergeant Pimentel was issued a Schedule "A" Command Discipline with the forfeiture of three (3) vacation days for the substantiated misconduct.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office